

Telugu Kukkala Anil Kumar vs The State Of Telangana on 9 June, 2026

HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD
THE HON'BLE SHRI JUSTICE ANIL KUMAR JUKANTI

CRIMINAL PETITION No.15486 OF 2024

DATE OF ORDER: 09.06.2026

Between:

1. Telugu Kukkala Anil Kumar,
S/o. Late Venkatramulu

... petitioner

And

1. The State of Telangana,
Rep. by Public Prosecutor,
High Court for the State of Telangana
at Hyderabad, through SHO W.P.S.
Warangal City, Warangal Urban District
and one other.

... respondents

ORDER:

This Criminal Petition is filed with the following prayer:

"... pleased to quash the proceeding in C.C.No.1569 of 2024 on the file of Hon'ble III Additional Judicial First Class Magistrate at Hanamkonda for the offences U/s 494 of IPC and pass..."

2. Heard Mr. P.Kasi Nageswara Rao, learned counsel for petitioner/accused, Mr. Surepalli Prashanth, learned Assistant Public Prosecutor for respondent-State and 2 JAK,J crlp_15486_2024 Mr. P.Vamsheedhar Reddy, learned counsel for respondent No.2.

3. This Criminal Petition is filed to quash proceedings in C.C.No.1569 of 2024 on the file of III Additional Judicial First Class Magistrate at Hanamkonda.

4. On the basis of complaint, an FIR was registered bearing No.722 of 2023, dated 10.11.2023 under Section 494 of Indian Penal Code, 1860, (for short 'IPC').

5. In the complaint, it is averred that respondent No.2 was married to accused/petitioner on 23.02.2017, and after two years, accused secured a job as Junior Accountant in TSSPDCL. That

accused/petitioner started harassing respondent No.2 physically and mentally accusing that she did not get dowry, not good looking that he would marry someone. That petitioner's brother-in-law and sister were also harassing her. That a Crime No.130 of 2019 under Sections 498-A and 506 of IPC read with Sections 3 and 4 of Dowry and Prohibition Act, 1961, was lodged in the Women Police Station against petitioner, 3 JAK,J crlp_15486_2024 petitioner's sister and brother-in-law. It is also averred that without her knowledge and permission, the accused married one Kota Sri Laxmi on 28.03.2023 and this fact was told to her by her advocate who has shown the marriage photos and marriage certificate of accused. Hence, the complaint.

6. It is submitted by the learned counsel for accused/petitioner that F.C.O.P.No.902 of 2019 preferred on the file of the Principal Judge, Family Court-Cum- Additional Chief Judge, City Civil Court at Hyderabad, was allowed on 13.03.2021 granting a decree of divorce, dissolving the marriage between petitioner and respondent No.2, that it is an ex-parte decree. It is further submitted that I.A.No.446 of 2023 in F.C.O.P.No.902 of 2019 was filed seeking to set aside the decree of divorce along with a delay petition and the said petition stood dismissed on 08.12.2023. It is also submitted that against the order in delay petition a Civil Revision Petition bearing CRP No.407 of 2024 was filed, that a learned Single Judge of this Court 4 JAK,J crlp_15486_2024 allowed the CRP by setting aside I.A.No.446 of 2023 in F.C.O.P.No.902 of 2019.

7. It is pointed out that in view of the orders in C.R.P.No.407 of 2024, F.C.O.P.No.902 of 2019 was restored to the file of the Court for granting an opportunity to respondent No.2 to present her case.

8. It is submitted that Section 494 of IPC, does not get attracted in the present facts of the case, as the petitioner/accused got married after two (2) years from the date of decree of divorce and that the marriage is a registered marriage and is valid according to law.

9. On the other hand, learned counsel for respondent No.1/State submitted that investigation is completed and charge sheet is filed. That petitioner/accused married during the life time of respondent No.2 and no interference is necessitated. That, this Court by an order in CRP directed to dispose of the F.C.O.P.No.902 of 2019, as expeditiously as possible.

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10. It is contended by learned counsel appearing on behalf of respondent No.2 that accused/petitioner could not have married for the second time during the subsistence of the first marriage. That the CRP filed was allowed and an opportunity is given to contest the proceedings in F.C.O.P.No.902 of 2019. That the offence of bigamy under Section 494 of IPC is attracted in the present case and no interference is necessitated.

11. Heard learned counsels, perused the record and considered the submissions.

12. Accused/petitioner was married to respondent No.2 on 23.02.2017. On the basis of a complaint dated 18.10.2023 (Page No.16) addressed to Station House Officer, Subedari Police Station, an FIR came to be registered bearing No.722 of 2023, dated 10.11.2023, for an offence under Section 494 of

IPC. The complainant is respondent No.2 herein. It is averred in the complaint that the petitioner/accused got married on 28.03.2023 and that this fact was brought to her notice by her advocate. It is also averred in the complaint that her husband was 6 JAK,J crlp_15486_2024 harassing her physically and mentally for more dowry and a crime No.130/2019 was registered under Sections 498-A, 506 of IPC and Sections 3 & 4 of Dowry Prohibition Act, 1961. His brother-in-law and sister were also harassing her. The gist of the complaint revolves around the second marriage.

13. F.C.O.P.No.902 of 2019 was filed by petitioner/accused under Section 13(1)(ia) of Hindu Marriage Act, 1955, praying the Court to grant a decree of divorce by dissolving the marriage performed on 23.02.2017 between accused/petitioner herein and respondent No.2. The Principal Judge, Family Court-cum- Additional Chief Judge, City Civil Court, Hyderabad, by its order dated 13.03.2021, allowed the petition filed for decree of divorce by dissolving the marriage between the accused/petitioner herein and respondent No.2.

14. The Family Court, in its order dated 13.03.2021, observed as follows:

"Respondent appeared before court but did not file counter inspite of giving several opportunities and hence, she was set exparte on 04.03.2021."

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15. From the material on record, it is apparent that petitioner got married to one Kota Sri Laxmi on 28.03.2023, this fact is also reflected in the complaint filed by respondent No.2.

16. I.A.No.446 of 2023 was filed on 19.06.2023 (Page Nos.23-31, affidavit & petition) before the Principal Judge, Family Court-cum-Additional Chief Judge, City Civil Court, Hyderabad, by respondent No.2 under Section 5 of Limitation Act, to condone the delay of 447 days in filing the petition to set aside the exparte decree dated 13.03.2021 in F.C.O.P.No.902 of 2019.

17. I.A.No.446 of 2023 was dismissed on 08.12.2023 (Page Nos.33-44) by the trial Court. C.R.P.No.407 of 2024 came to be filed challenging the order dated 08.12.2023 which was allowed by a learned Single Judge of this Court on 14.11.2024 (Page Nos.45-49).

18. In the order dated 08.12.2023 in I.A.No.446 of 2023 in F.C.O.P.No.902 of 2019, at Paragraph No.7, the following is reflected:

8 JAK,J crlp_15486_2024 "7. It is further pleaded by the respondent that, after passing of the said exparte decree, the petitioner herein did not choose to file the petition to set aside the exparte decree within appeal period. After waiting for morethan 2 years, he married one Kota Sri Laxmi on 28.03.2023, the same has been registered in the office of sub registrar Gadwal on 04.03.2023 and they are leading happy marital life.

The petitioner herein after coming to know about his marriage, in order to disturb their peace, with a malafide intention, filed the present petition, though, she is not having any intention to lead marital life. In fact, he is not aware of the IA No.1/2020 filed by the petitioner here in, for review against the dismissal order in transfer CMP No.219/2020."

19. The fact that accused/petitioner got married on 28.03.2023 is not disputed by the complainant/respondent No.2 herein. The marriage of the accused/petitioner is after two years of ex-parte decree of divorce dated 13.03.2021. The marriage is registered in the office of Sub-Registrar, Gadwal. The fact that accused/petitioner married one Kota Sri Laxmi after two years of decree of divorce is permissible under law.

20. FIR is registered under Section 494 of IPC, charge sheet is filed on 29.05.2024 and numbered as C.C.No.1569 of 2024. It is pertinent to extract Section 494 of IPC, which is as follows:

9 JAK,J crlp_15486_2024 "494. Marrying again during lifetime of husband or wife.-- Whoever, having a husband or wife living, marries in any case in which such marriage is void by reason of its taking place during the life of such husband or wife, shall be punished with imprisonment of either description for a term which may extend to seven years, and shall also be liable to fine.

Exception.-- This section does not extend to any person whose marriage with such husband or wife has been declared void by a Court of competent jurisdiction, nor to any person who contracts a marriage during the life of a former husband or wife, if such husband or wife, at the time of the subsequent marriage, shall have been continually absent from such person for the space of seven years, and shall not have been heard of by such person as being alive within that time provided the person contracting such subsequent marriage shall, before such marriage takes place, inform the person with whom such marriage is contracted of the real state of facts so far as the same are within his or her knowledge."

21. Section 198 of Code of Criminal Procedure, 1973, (for short 'Cr.P.C.') is as follows:

"198. Prosecution for offences against marriage.-- (1) No Court shall take cognizance of an offence punishable under Chapter XX of the Indian Penal Code (45 of 1860) except upon a complaint made by some person aggrieved by the offence:

Provided that--

(a) where such person is under the age of eighteen years, or is an idiot or a lunatic, or is from sickness or infirmity unable to make a complaint, or is a woman who, according to the local customs and manners, ought not to be compelled to appear in public, some other person may, with the leave of the Court, make a complaint on his or her behalf;

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(b) where such person is the husband and he is serving in any of the Armed Forces of the Union under conditions which are certified by his Commanding Officer as precluding him from obtaining leave of absence to enable him to make a complaint in person, some other person authorised by the husband in accordance with the provisions of sub-section (4) may make a complaint on his behalf;

(c) where the person aggrieved by an offence punishable under section 494 or section 495] of the Indian Penal Code (45 of 1860) is the wife, complaint may be made on her behalf by her father, mother, brother, sister, son or daughter or by her father's or mother's brother or sister [, or, with the leave of the Court, by any other person related to her by blood, marriage or adoption]. (2) For the purposes of sub-section (1), no person other than the husband of the woman shall be deemed to be aggrieved by any offence punishable under section 497 or section 498 of the said Code:

Provided that in the absence of the husband, some person who had care of the woman on his behalf at the time when such offence was committed may, with the leave of the Court, make a complaint on his behalf.

(3) When in any case falling under clause (a) of the proviso to sub-section (1), the complaint is sought to be made on behalf of a person under the age of eighteen years or of a lunatic by a person who has not been appointed or declared by a competent authority to be the guardian of the person of the minor or lunatic, and the Court is satisfied that there is a guardian so appointed or declared, the Court shall, before granting the application for leave, cause notice to be given to such guardian and give him a reasonable opportunity of being heard.

(4) The authorisation referred to in clause (b) of the proviso to sub-section (1), shall be in writing, shall be signed or otherwise attested by the husband, shall contain a statement to the effect that he has been informed of the allegations upon which the complaint is to be founded, shall be countersigned by his Commanding Officer, and shall be

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(5) Any document purporting to be such an authorisation and complying with the provisions of sub-section (4), and any document purporting to be a certificate required by that sub-section shall, unless the contrary is proved, be presumed to be genuine and shall be received in evidence. (6) No Court shall take cognizance of an offence under section 376 of the Indian Penal Code (45 of 1860), where such offence consists of sexual intercourse by a man with his own wife, the wife being under [eighteen years of age], if more than one year has elapsed from the date of the commission of the offence.

(7) The provisions of this section apply to the abetment of, or attempt to commit, an offence as they apply to the offence."

22. Section 2(d) of Cr.P.C., defines complaint as follows:

"2(d) "complaint" means any allegation made orally or in writing to a Magistrate, with a view to his taking action under this Code, that some person, whether known or unknown, has committed an offence, but does not include a police report.

Explanation.--A report made by a police officer in a case which discloses, after investigation, the commission of a non-cognizable offence shall be deemed to be a complaint; and the police officer by whom such report is made shall be deemed to be the complainant."

23. Section 15 of the Hindu Marriage Act, 1955, reads as follows:

"15. Divorced persons when may marry again.-- When a marriage has been dissolved by a decree of divorce and either there is no right of appeal against the decree or, if there is such a right 12 JAK,J crlp_15486_2024 of appeal, the time for appealing has expired without an appeal having been presented, or an appeal has been presented but has been dismissed, it shall be lawful for either party to the marriage to marry again."

24. Section 28 of the Hindu Marriage Act, 1955, reads as follows:

"28. Appeals from decrees and orders.-- (1) All decrees made by the court in any proceeding under this Act shall, subject to the provisions of sub- section (3), be appealable as decrees of the court made in the exercise of its original civil jurisdiction, and every such appeal shall lie to the court to which appeals ordinarily lie from the decisions of the court given in the exercise of its original civil jurisdiction.

(2) Orders made by the court in any proceeding under this Act under section 25 or section 26 shall, subject to the provisions of sub-section (3), be appealable if they are not interim orders, and every such appeal shall lie to the court to which appeals ordinarily lie from the decisions of the court given in exercise of its original civil jurisdiction.

(3) There shall be no appeal under this section on the subject of costs only.

(4) Every appeal under this section shall be preferred within a [period of ninety days] from the date of the decree or order."

25. The question which arises for consideration is whether a marriage solemnized during operation of an ex parte decree of divorce (of the earlier marriage), would amount to the offence of bigamy. As on the date of second marriage i.e., 28.03.2023, there was no marriage subsisting between accused and respondent No.2, in view 13 JAK,J crlp_15486_2024 of the operation of ex parte decree of divorce. To put it legally, there was no legal barrier for a second marriage as on 28.03.2023. When

there is a decree of divorce and one of the parties to the decree of divorce marries after appeal period, no offence of bigamy would be made out.

26. Accused married after the expiry of the period of appeal i.e., 90 days, to set aside the ex parte decree by filing appeal under Section 28 of Hindu Marriage Act, 1955. Fastening of criminal culpability on the accused is not tenable, as no valid marriage was subsisting on the date of second marriage. Since there is no subsisting legal marriage on 28.03.2023, the second marriage solemnized by the accused would not attract penal consequences under Section 494 of IPC.

27. It was contended that offence under Section 494 of IPC (Section 82 of BNS) falls under Chapter XX of IPC. That as per Section 198 of Cr.P.C. (Section 219 of BNSS) prosecution for offences against marriage no court shall take cognizance of offence punishable under Sections 493 to 498 of IPC (Sections 81 to 84 of BNS), except on a 14 JAK,J crlp_15486_2024 complaint made by a person aggrieved by offence. That complaint means an allegation made orally or in writing to a Magistrate.

28. It is pertinent to take note of the judgment rendered by the Hon'ble Apex Court in A. Subash Babu v. Andhra Pradesh and another 1, Apex Court while dealing with similar proposition of law after considering the amendment to the Code of Criminal Procedure (Andhra Pradesh second amendment, 1992) held as follows:

"46. Once the First Schedule to the Code of Criminal Procedure, 1973 stands amended and the offences punishable under Sections 494 and 495 IPC are made cognizable offences, those offences will have to be regarded as cognizable offences for all purposes of the Code of Criminal Procedure, 1973 including for the purpose of Section 198 of the Criminal Procedure Code. Section 198(1)(c), after the amendment made by the Code of Criminal Procedure (Andhra Pradesh Second Amendment) Act, 1992 cannot be interpreted in isolation without referring to the fact that offences under Sections 494 and 495 IPC have been made cognizable so far as the State of Andhra Pradesh is concerned. Therefore, the provision made in Section 198(1)(c) that no court shall take cognizance of an offence punishable under Chapter XX of the Penal Code except upon a complaint made by some person aggrieved will have to be read subject to the amendment made by the Legislative Assembly of the State of Andhra Pradesh in 1992. Once, it is held that the offences under Sections 494 and 495 IPC are cognizable offences, the bar imposed by the operative (2011) 7 SCC 616 15 JAK,J crlp_15486_2024 part of sub-section (1) of Section 198 of the Criminal Procedure Code beginning with the words "No court shall take cognizance of an offence punishable under Chapter XX of the Penal Code except upon a complaint made by some person aggrieved by the offence" gets lifted so far as offences punishable under Sections 494 and 495 IPC are concerned.

47. As those offences have been made cognizable offences in the State of Andhra Pradesh since 1992, the same will have to be dealt with as provided in Section 156 which inter alia provides that:

"156. Police officer's power to investigate cognizable case.--(1) Any officer in charge of a police station may, without the order of a Magistrate, investigate any cognizable case which a court having jurisdiction over the local area within the limits of such station would have power to enquire into or try under the provisions of Chapter XIII."

Even without the authorisation under Section 155(2) or Section 156(3) of the Criminal Procedure Code, offences under Sections 494, 495 and 496 IPC having been rendered cognizable and non-bailable by virtue of the Code of Criminal Procedure (Andhra Pradesh Second Amendment) Act, 1992 can be investigated by the police and no illegality is attached to the investigation of these offences by the police. If the police officer in charge of a police station is entitled to investigate offences punishable under Sections 494 and 495 IPC, there is no manner of doubt that the competent court would have all jurisdiction to take cognizance of the offences after receipt of report as contemplated under Section 173(2) of the Code."

29. In view of the judgment of the Hon'ble Apex Court the contention put forth by the counsel for accused/petitioner does not hold water.

30. A perusal of the material on record indicates that the decree of divorce is granted on 13.03.2021, as per Section 16 JAK, J crlp_15486_2024 28 of Hindu Marriage Act, 1955, an appeal against the decree of divorce can be preferred within 90 days from the date of decree of divorce. Second marriage of accused is on 28.03.2023 i.e., two years after the decree of divorce. In other words, the marriage is after the appeal period of 90 days from the date of decree of divorce.

31. Petition to set aside the decree of divorce with delay condonation petition is filed on 19.06.2023. Complaint is lodged on 18.10.2023 i.e., much after the filing of the petition to set aside the decree of divorce. FIR bearing No.722 of 2023 is registered on 10.11.2023 for offence under 494 of IPC, there is a delay in registering the FIR, no explanation is forthcoming for the delay. Charge sheet is dated 29.05.2024 for offence under Section 494 of IPC. The III Additional Judicial First Class Magistrate at Hanamkonda has taken cognizance of the case and is numbered as C.C.No.1569 of 2024.

32. For an offence to be made out under Section 494 of IPC, a person, if having a living husband or wife marries again (i.e., during the subsistence of first marriage) that 17 JAK, J crlp_15486_2024 person is said to have committed an offence under Section 494 of IPC.

33. In the present facts of the case, the material on record does not in any manner bring home the fact that the accused has committed the offence under Section 494 of IPC. The complainant in her complaint has stated that the marriage of the accused took place on 28.03.2023 two years after the decree of divorce. The appeal period is 90 days. Marriage is performed after obtaining a decree of divorce and is registered in the office of Sub Registrar. From the facts on record, the offence under Section 494 of IPC is not made out, criminal petition is liable to be allowed.

34. For reasons aforesaid, Criminal Petition stands allowed, proceedings against petitioner/accused in C.C.No.1569 of 2024 on the file of the III Additional Judicial First Class Magistrate at

Hanamkonda, are liable to be quashed and are accordingly quashed.

18 JAK,J crlp_15486_2024 Miscellaneous applications pending, if any, shall stand closed.

_____ ANIL KUMAR JUKANTI, J Date: 09.06.2026 Plp 19 JAK,J
crlp_15486_2024 THE HON'BLE SHRI JUSTICE ANIL KUMAR JUKANTI CRIMINAL PETITION
No.15486 OF 2024 Date: 09.06.2026 Plp